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No. 94-1947

Supreme Court, U.S.
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In the

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Supreme Court of the United States

October Term, 1995

APRIL LOVE,

Petitioner,

v.

ROBERT G. PEPERSACK, SR., et al.,

Respondents.

**On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Fourth Circuit**

**BRIEF IN OPPOSITION TO
PETITION FOR A WRIT OF CERTIORARI**

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COUNTERSTATEMENT OF QUESTIONS PRESENTED FOR REVIEW

1. Whether a decision by state officials, overturned on appeal by a state court, to disapprove an application for a firearm license in violation of state law states a substantive due process claim?

2. Whether the Second Amendment applies to the states and protects a personal, rather than a collective right; and if it does, is it violated by a decision of state officials, overturned on appeal by a state court, to disapprove an application for a firearm license in violation of state law?

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**BRIEF IN OPPOSITION TO
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COUNTERSTATEMENT OF THE CASE

1. Proceedings below.

Petitioner April Love asks this Court to review the decision of the court of appeals affirming the district court's dismissal of her claim for money damages on the basis that neither substantive due process principles nor the Second Amendment is violated by a decision of state officials, overturned on appeal by a state court, to disapprove an application for a firearm license in violation of state law.

Pursuant to subsection (g) of MD. ANN. CODE art. 27 § 442 (Supp. 1994) (App. 3a-8a), which sets out the procedures to be followed before a dealer may sell a

firearm, Ms. Love filled out an application which the firearm dealer forwarded to the Superintendent of the Maryland State Police (MSP). (App. 37a.) Upon receipt of the application the MSP was required to conduct an investigation to determine the truth of the information supplied by Ms. Love (App. 5a-6a), and to complete the investigation and give written notice of any disapproval to her "within seven days from the date the executed application to purchase or transfer was forwarded by certified mail [to the MSP by the prospective seller]."¹ (App. 6a) The investigation of Ms. Love's application consisted of a review of computer printouts from data bases maintained by MSP and the Federal Bureau of Investigation, and revealed that Ms. Love had been arrested for three offenses that had there been a conviction, would have disqualified her from purchasing a firearm under state and federal law. (App. 37a, 38a, 42a-43a.) Based on a review of the file, respondent Pepersack disapproved Ms. Love's application. (App. 27a.) After she was notified of the disapproval, petitioner exhausted her administrative remedies (App. 27a), and then appealed to the Circuit Court for Prince George's County, Maryland, which reversed the decision of the MSP. (App. 45a.)

A year and a half later Ms. Love filed a complaint in the United States District Court for the District of Maryland for money damages alleging that the decision of the Maryland State Police that was overturned on appeal by the state court violated her rights under substantive due process principles and the Second Amendment. Respondents filed a motion to dismiss, arguing that the misapplication of state law that had been corrected by a state court did not rise to the level of a substantive due process violation and, citing *United States v. Cruikshank*,

¹ "The date upon which the executed application to purchase or transfer was forwarded by certified mail by the prospective seller or transferor shall be considered the first day of the seven-day period allowed for notice of disapproval to the said prospective seller or transferor." (App. 6a.)

92 U.S. 542, 553 (1876), argued that the Second Amendment does not apply to the states.²

2. Decisions below.

The district court, after noting that it was a "proposition [that] has not ever been accepted by courts in this country," (App. 14a), relied on *Presser v. Illinois*, 116 U.S. 252 (1886), and *United States v. Cruikshank*, to reject petitioner's argument that the Second Amendment applies to the states. (App. 14a) The district court also held that petitioner had not stated a claim for violation of substantive due process because petitioner had not demonstrated any entitlement to have her application approved since the MSP had some discretion concerning whether to disapprove the application. (App. 19a.) Furthermore, the district court held that even if there was a protected interest, the actions of the respondents were not "arbitrary and capricious in the sense that 42 U.S.C. [§] 1983 defines them." (App. 19a-20a.)

Assuming without deciding that Love had a claim of entitlement in the approval of her application for a firearm, the court of appeals held that there had not been a violation of substantive due process because the facts alleged did not show that the actions of the state officials were "so arbitrary or irrational, so unjustified by any circumstance or governmental interest, as to be literally incapable of avoidance by any pre-deprivation procedural protections or

² In addition, the respondents argued that suit against the State of Maryland was barred by the Eleventh Amendment and that the complaint did not state a claim upon which relief could be granted for any interference with Ms. Love's freedom to contract or a violation of the Maryland Declaration of Rights. The district court ruled in respondents' favor on these issues. Ms. Love did not appeal the dismissal of the State and has now abandoned any claim based on the contract clause or the Maryland Declaration of Rights.

of adequate rectification by any post-deprivation state remedies." (App. 29a) *quoting Rucker v. Harford County*, 946 F.2d 278, 281 (4th Cir. 1991), *cert. denied*, 502 U.S. 1097 (1992).³ "Indeed, the deprivation here was fully rectified." (App. 30a.)

Applying this Court's holdings in *Presser v. Illinois*, *United States v. Cruikshank*, and *United States v. Miller*, 307 U.S. 174 (1939), the court of appeals held that petitioner had not stated a claim for a violation of the Second Amendment, because the Second Amendment does not apply to the states, and in any event it protects a "collective, rather than individual, right." (App. 30a-31a.) *also relying on United States v. Johnson*, 497 F.2d 548 (4th Cir. 1974). The court of appeals affirmed and denied petitioner's request for rehearing and suggestion of rehearing *en banc*.

REASONS FOR DENYING THE WRIT

Further review of this case is unwarranted because the questions that the petition presents are settled and petitioner has not pointed to any conflict with any decision of this Court or any other court. First, the court of appeals decided no novel or unresolved questions of federal law in concluding that a violation of substantive due process did not occur simply because state officials enforced a policy that was contrary to state law until it was successfully challenged in state court.

³ The court of appeals' conclusion that the MSP was "strapped for time" flows from the facts in the complaint. Ms. Love filled out her application on September 13th, it was received by the MSP on September 18th, and she had to be given written notification by September 21st. (App. 36a-37a.) Thus, petitioner is wrong in asserting that the court of appeals "stated as fact something that is not apparent from the record." Pet. at 24.

Second, review is unwarranted because the court below followed well established precedent of this Court in finding that "the Second Amendment does not apply to the states" and that it in any event "preserves a collective, rather than an individual right." (App. 30a-31a.) Petitioner does not cite any conflicting decisions of this Court or any other court on this issue. Moreover, even if the Second Amendment applies to the states and preserves an individual right, it is not an absolute right -- the states would still have the right to regulate and misapplication of a state law regulating the sale of firearms would not amount to a denial of any Second Amendment right, especially when the erroneous denial is corrected on appeal by a state court. In any event, qualified immunity would bar any recovery to the petitioner because not only does she not seek declaratory or injunctive relief, she does not allege any facts -- such as that the MSP continued to misapply Maryland law after the state court's decision finding the policy in violation of state law -- that would support a claim for declaratory or injunctive relief. In sum, this case is not an appropriate vehicle to reconsider the well settled law on the Second Amendment, because the factual situation here does not go "beyond the academic or the episodic," *Rice v. Sioux City Memorial Park Cemetery*, 349 U.S. 70, 74 (1955).

The petition should be denied, therefore, because this case presents no issue warranting this Court's review.

I. THE COURT OF APPEALS HOLDING THAT SUBSTANTIVE DUE PROCESS WAS NOT VIOLATED DOES NOT PRESENT A SUBSTANTIAL QUESTION AND IS CONSISTENT WITH THE DECISIONS OF THIS COURT AND OTHER CIRCUIT COURTS.

Without citing to any cases that hold that different standards apply to intentional and unintentional violations of state law, petitioner argues that the court of appeals incorrectly applied a standard that only applies to unintentional acts when it held that the disapproval of her

application did not violate substantive due process. Pet. at 23-24. However, an examination of the court of appeals decision reveals that the court did not disregard or misapply any precedents of this Court in deciding that even assuming that petitioner has a "property interest in the approval of her application" (App. 29a), the governmental action here did not rise to the level required to amount to a violation of substantive due process.

As the court of appeals recognized, the respondents' violation of state law arose out of an exercise of "extreme caution by denying applications where a computer check showed arrests with unknown dispositions" (App. 29a-30a), for offenses which, had there been a conviction, would have disqualified the applicant from purchasing the firearm under state or federal law. (App. 42a-43a.) The court of appeals' conclusion that it would "trivialize the Due Process Clause" to conclude that substantive due process is violated when it could not say that the action taken by the state officials "was 'unjustified by circumstance or governmental interest' or that its effect was 'literally incapable of . . . adequate rectification by any post-deprivation state remedies'" (App. 30a), is consistent with this Court's precedent that "the Due Process Clause of the Fourteenth Amendment was intended to prevent government 'from abusing [its] power, or employing it as an instrument of oppression.'" *Davidson v. Cannon*, 474 U.S. 344, 348 (1986), *quoted in DeShaney v. Winnebago County DSS*, 489 U.S. 189, 196 (1989). *See also Bowers v. Hardwick*, 478 U.S. 186, 195 (1986); *Paul v. Davis*, 424 U.S. 693, 700 (1976). The Due Process Clause does not protect against all wrongful governmental action. *See, e.g., Foucha v. Louisiana*, 504 U.S. 71, 72 (1992) ("the Due Process Clause contains a substantive component that bars certain arbitrary, wrongful government action...." (emphasis added)). The facts alleged in the complaint simply do not rise to an instance where there was an "affirmative abuse of power," *Parratt v. Taylor*, 451 U.S. 527, 549 (1981) (Powell, J., concurring in result), or where "governmental power [was] being 'used for purposes of oppression.'" *Daniels v. Williams*, 474 U.S. 327, 331

(1986) (internal citations omitted). *See also Sandin v. Conner*, 115 S. Ct. 2293 (1995) (state prison regulation does not create a liberty interest protected by the due process clause merely because it mandates a particular procedure).

In addition to not showing any conflict or inconsistency with any holding of this Court, petitioner does not point to any conflict between the decision below and any other court of appeals. To the contrary, the analysis of the Court of Appeals for the Fourth Circuit is consistent with the law in other circuits. *See, e.g., Harrill v. Blount County, Tennessee*, 55 F.3d 1123, 1125 (6th Cir. 1995) ("The violation of a right created and recognized only under state law is not actionable under §1983."); *Lowrance v. Achryl*, 20 F.3d 529, 537 (2nd Cir. 1994) ("Substantive due process protects individuals against government action that is arbitrary, conscience-shocking, or oppressive in a constitutional sense, but not against government action that is 'incorrect or ill-advised.'" (citations omitted)); *Burgess v. Ryan*, 996 F.2d 180, 184 (7th Cir. 1993) ("The Constitution does not require states to administer their laws correctly. Blunders in the implementation of state law are inevitable; state courts provide the remedy." (citations omitted)), *cert. denied*, 114 S. Ct. 923 (1994); *Coyne v. City of Somerville*, 972 F.2d 440, 444 (1st Cir. 1992) ("violations of state law - even where arbitrary, capricious, or undertaken in bad faith - do not, without more, give rise to a denial of substantive due process"); *Chesterfield Development Corp. v. City of Chesterfield*, 963 F.2d 1102, 1105 (8th Cir. 1992) ("A bad-faith violation of state law remains only a violation of state law."); *Phillips v. Calhoun*, 956 F.2d 949, 954 (10th Cir. 1992) ("noncompliance with local law does not constitute a violation of federal due process rights" (citations omitted)); *Midnight Sessions, Ltd. v. City of Philadelphia*, 945 F.2d 667, 684 (3rd Cir. 1991) ("a violation of state law does not constitute a denial of substantive due process"), *cert. denied*, 503 U.S. 984 (1992); *Smith v. City of Picayune*, 795 F.2d 482, 488 (5th Cir. 1986) (violation of state law not *per se* violation of due process, must also

prove irrational and arbitrary conduct); *Jones v. Phyfer*, 761 F.2d 642, 647 (11th Cir. 1985) ("The fact that defendants may have violated . . . state law . . . does not mean that the defendants deprived plaintiff of her liberty without due process of law."); *Cooks v. Spalding*, 660 F.2d 738, 739 (9th Cir. 1981) ("Violations of state law, without more, do not deprive defendant of due process."), *cert. denied* 455 U.S. 1026 (1982).

II. THE COURT OF APPEALS APPLIED WELL SETTLED LAW ON THE SECOND AMENDMENT AND THIS PETITION DOES NOT PRESENT ANY BASIS FOR THIS COURT TO REEXAMINE THAT LAW.

The court of appeals holding that "the Second Amendment does not apply to the states" and that it "preserves a collective, rather than an individual right" (App. 30a-31a), follows this Court's holdings in *Presser v. Illinois*, 116 U.S. 252; *United States v. Cruikshank*, 92 U.S. 542; and *United States v. Miller*, 307 U.S. at 178.⁴ In fact, as the district court held, the contrary proposition put forward by petitioner "has not ever been accepted by courts in this country." (App. 14a.) Thus petitioner does not cite any holdings of this Court or any other court in support of his proposition that the Second Amendment applies to the states. Instead, she relies exclusively on "law review articles." (App. 30a.) Similarly, petitioner

⁴ See also *Lewis v. United States*, 445 U.S. 55, 65 n. 8 (1980), where this Court noted that "legislative restrictions on the use of firearms [were] neither based upon constitutionally suspect criteria, nor . . . trench upon any constitutionally protected liberties." (Citing *United States v. Miller*, *United States v. Three Winchester 30-30 Caliber Lever Action Carbines*, 504 F.2d 1288, 1290 n. 5 (7th Cir. 1974); *United States v. Johnson*, 497 F.2d 548 (4th Cir. 1974); *Cody v. United States*, 460 F.2d 34 (8th Cir.), *cert. denied*, 409 U.S. 1010 (1972)).

does not point to one case that has held that the Second Amendment guarantees a personal right. Instead, in addition to law review articles, she relies on inapplicable dicta in *Planned Parenthood v. Casey*, 112 S. Ct. 2791 (1992); *United States v. Verdugo-Urquidez*, 494 U.S. 259 (1990); and *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393 (1857).⁵

This Court has consistently refused to grant certiorari in cases in which the question of whether the Second Amendment applies to the states through the Fourteenth Amendment has been squarely presented. See, e.g., *Quilici v. Village of Morton Grove*, 695 F.2d 261 (7th Cir. 1982), cert. denied, 464 U.S. 863 (1983); *Masters v. State*, 685 S.W.2d 654 (Tex. Cr. App), cert. denied sub nom. *Masters v. Texas*, 474 U.S. 853 (1985); *State v. Cartwright*, 418 P.2d 822 (Or. 1966), cert. denied sub nom. *Cartwright v. Oregon*, 386 U.S. 937 (1967). Likewise, this Court has repeatedly denied petitions for certiorari asking this Court to revisit the issue of whether the Second Amendment confers an individual rather than a collective right. See, e.g., *United States v. Hale*, 978 F.2d 1016 (8th Cir. 1992), cert. denied, 113 S. Ct. 1614 (1993); *Quilici v. Village of Morton Grove*, 695 F.2d 261 (7th Cir. 1982), cert. denied, 464 U.S. 863 (1983); *United States v.*

⁵ Petitioner disingenuously argues that the court of appeals' holding that the Second Amendment protects a collective right, rather than an individual right, is in conflict with *Fresno Rifle and Pistol Club v. Van de Kamp*, 965 F.2d 723 (9th Cir. 1992). Pet. at 16. On the contrary, the Court of Appeals for the Ninth Circuit held that the Second Amendment does not apply to the states and did not even address the question of whether the right is an individual or collective right. While petitioner claims that the court of appeals "affirmed the holding of the district court that the Second Amendment guarantees an individual right," Pet. at 17, the district court's decision, 746 F. Supp. 1415 (E.D. Cal. 1990), which petitioner does not even cite, is silent on that issue.

Oakes, 564 F.2d 384 (10th Cir. 1977), *cert. denied*, 435 U.S. 926 (1978); *United States v. Warin*, 530 F.2d 103 (6th Cir.), *cert. denied*, 426 U.S. 948 (1976); *Eckert v. City of Philadelphia*, 477 F.2d 610 (3d Cir. 1973), *cert. denied*, 414 U.S. 839 (1973).

At most, the question presented by petitioner concerning the Second Amendment is "intellectually interesting," *Rice v. Sioux City Memorial Park Cemetery, Inc.*, 349 U.S. at 74, because, even if the Second Amendment applies to the states and confers an individual right, the right is not absolute. *See, e.g., Lewis v. United States*, 445 U.S. 55 (1980) (upholding the regulation of the possession of firearms by felons); *United States v. Miller*, 307 U.S. 174 (upholding regulations restricting possession of particular firearms); *cf. Nebraska Press Assoc. v. Stuart*, 427 U.S. 539 (1976) ("This Court has frequently denied that First Amendment rights are absolute...."). The states have some ability to regulate the right and it would not be violated merely because state officials violate state law, especially when that violation is corrected on appeal, by a state court.

Finally, even if the Court accepts petitioner's arguments, petitioner will eventually lose this case, as respondents are state officials who are immune from claims for money damages unless "in the light of pre-existing law, the unlawfulness [is] apparent." *Anderson v. Creighton*, 483 U.S. 635, 640 (1987) (citations omitted). At the time the state officials disapproved the petitioner's application, it was certainly not "apparent" that the Second Amendment applies to the states and protects a personal, rather than a collective right. These state officials were not required "to anticipate subsequent legal developments, [or] . . . to 'know' that the law forbade conduct not previously identified as unlawful." *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982). The fact that they violated state law is not determinative if "the constitutional right . . . alleged to have [been] violated," was not clearly established. *Davis*

v. Scherer, 468 U.S. 183, 194 (1984). Thus on remand they would assert qualified immunity.⁶

Because petitioner does not seek injunctive relief, or even allege facts that would support injunctive relief, any reconsideration of the well settled law on the Second Amendment through this case will answer an "academic" question, *Rice v. Sioux City Memorial Park Cemetery*, 349 U.S. at 74, since there is no allegation that the MSP continued to misapply state law after the state court decision that settled the matter with respect to petitioner. As in *Rice*, the state has taken action that "reach[es] precisely the same situations that would [be] covered by a decision in this Court sustaining the petitioner claim on the merits." *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409, 417 n. 21 (1968). There are no "special or important reasons," S. Ct. Rule 10.1, for granting certiorari in this case.

'Special and important reasons' imply a reach to a problem beyond the academic or the episodic. This is especially true where the issues involved reach constitutional dimensions, for then there comes into play regard for the Court's duty to avoid decision of constitutional issues unless avoidance becomes evasion.

Rice v. Sioux City Memorial Park Cemetery, 349 U.S. at 74. Avoidance in this instance is simply refusing to revisit a settled constitutional question to "pass judgment on [Maryland] for unconstitutional action, were such to be

⁶ The issue of qualified immunity was not raised in the motion to dismiss. However, if this Court were to hold that the complaint states a claim upon which relief can be granted, respondents would allege qualified immunity in their answer. See *Harlow v. Fitzgerald*, 457 U.S. 800, 815 (1982) (qualified immunity must be plead); Fed. Rule Civ. Proc. Rule 7(a) (listing an answer as one of the pleadings allowed).

found, when it has already rectified any possible error." *Id.* at 77. In sum, this case is an "inappropriate vehicle for [reexamining]" the Second Amendment. *New York v. Uplinger*, 467 U.S. 246, 249, (1984). Any reexamination "can await a day when the issue is posed less abstractly." *The Monrosa v. Carbon Black Export, Inc.*, 359 U.S. 180, 184 (1959).

CONCLUSION

For the reasons stated, the petition should be denied.

Respectfully submitted,

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